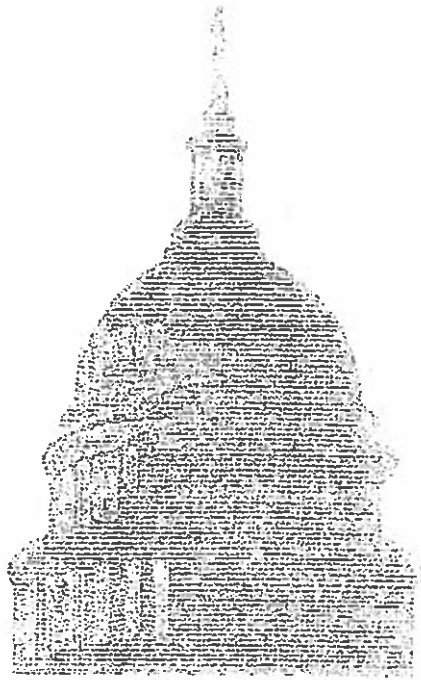




COLLECTIVE BARGAINING AGREEMENT

JANUARY 1, 2021 – DECEMBER 31, 2026

BETWEEN CITY OF TRENTON

and

**TRENTON FIRE OFFICERS ASSOCIATION,
FIREMEN'S MUTUAL BENEVOLENT ASSOCIATION**

LOCAL 206

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PREAMBLE

This AGREEMENT entered this (insert execution date) between the City of Trenton (hereinafter referred to as "CITY") and the Trenton Fire Officers Association, Firemen's Mutual Benevolent Association Local 206 (hereinafter referred to as the "TFOA") is the agreement between the parties for the term indicated, January 1, 2021 through December 31, 2026.

ARTICLE I

Recognition and Areas of Negotiation

Section 1.01 - Recognition

The CITY hereby recognizes the TFOA as the sole and exclusive representative and bargaining agent for the collective bargaining unit, which shall include the following sworn members of the Fire Department to wit: Captains, Battalion Chiefs.

Section 1.02 - Areas of Negotiation

The CITY and the TFOA hereby agree that the parties shall retain the right to negotiate in the manner provided for in all pertinent areas of this Agreement, as to changes in the terms and conditions of the provisions within this Agreement.

Section 1.03 – Dues Deduction

The CITY shall deduct from the wages of each designated member of the TFOA the following:

- a. Biweekly dues in an amount designated by the TFOA from the earned wages of all members of the TFOA.
- b. The Union shall indemnify and hold the employer harmless against any and all claims, demands, suits and other forms of liability that may arise out of, or by reason of any action taken or not taken by the employer in conformance with this provision. Should Federal or State Law hereinafter provide for a change in the permissible scope of representation/agency fee clauses, the employer and the Union agree to implement a union representation/agency fee clause to the maximum extent allowed by Federal and State Law.

Section 1.04 – Union Business

Section 1.04A – Officers Granted Leave and Reasons for Leave

Elected officers of this organization (President, First and Second Vice-President, Treasurer, Secretary, and Sergeant-at-Arms) shall be granted leave from duty with full pay to attend the nine meetings of this organization scheduled throughout each year as well as any special full membership meetings that may be deemed necessary. This provision shall be limited to a maximum of

three officers at one time being granted leave to attend such meetings for the time of the meeting only.

Section 1.04B – Pool Days – Additional Reasons for Leave

Leave with pay shall be granted to Association Officers at the discretion of the President of the TFOA upon written request of the Association. For an amount of eighteen (18) days per year for all association officers combined. A day shall consist of a 24-hour period. These pool days are separate from all other union leave granted to members of this association. These workdays may be split with the approval of the Fire Director or his designee and all Officers granted leave shall be replaced by overtime personnel if deemed necessary by the Fire Director or his designee.

Any member who is also an NJFMBA State Officer or Chairperson shall be granted time off for 24-hour periods, for any required state meetings and/or to fulfill his/her duties. This time off is not charged to local pool days.

Effective 12/17/15, The Union President (or designee) will receive release from duty on day tours (12 hours) once a month; to attend union, community and administrative activities, they will work night tours as scheduled. If an assignment during a release tour requires staffing to be recalled they will complete the task at hand and respond to Fire Headquarters for assignment.

Section 1.04C – Convention Days

Effective 7/1/2000, the TFOA agrees that for the State Union Conventions no more than six (6) delegates per, convention and no more than two conventions per year will be allowed. In addition, no more than 10% of the Trenton Fire Officers who are members in an organization covered by state law shall be permitted to attend up to two (2) conventions per year. A convention day shall consist of a 24-hour period.

ARTICLE II

Standing Committees – Rights and Duties

Section 2.01 – Negotiating Committee

At the discretion of the TFOA President there shall be up to five members of the TFOA Negotiating Committee. These members shall be granted leave from duty with full pay, for all meetings between the City and Local 206 for the purpose of negotiating the terms of an Agreement. When such meetings take place at a time during which such members are scheduled to be on duty reasonable notice shall be rendered to the Fire Director.

ARTICLE III

Hours of Work and Overtime

Section 3.01 – Hours of Work

- a. The work week for all officers who perform firefighting (line officers) duties shall be two (2) consecutive twelve (12) hour shifts, creating one (1) twenty-four (24) hour shift followed by 72 hours off. The work shift begins at 7am and ends at 7 am. All line personnel shall work an average of 42-hour work week computed over a period of 1 calendar year.
- b. The work week for all officers on a basic forty (40) hour week shall consist of five (5) consecutive eight-hour days or, as allowed by the Fire Director, four (4) ten-hour days, Monday through Friday, inclusive. Each duty day shall be the stated number of consecutive hours, with the starting time as determined by the Fire Director.

Section 3.02 – Overtime Payments

- a. **Regular Overtime:** Whenever an Officer works in excess of their regularly assigned work week or work schedule as provided for in Section 3.01 A & B of Article III; In addition to any other benefits to which they may be entitled, they shall be paid for such overtime work in Fifteen Minute segments at 1 and ½ time the hourly rate which they received for their regularly assigned duty. For the purposes of this article, an Officer is not considered relieved from duty until 15 minutes after return to the station.
- b. **Callback:** Each officer called back to work after completion of their regular tour of duty shall be given a minimum of four (4) hours overtime at 1 and ½ times, the hourly rate. Said overtime shall be computed on an eight-hour day.
- c. **Court Appearances:** Effective on the date of the signing of this Agreement, time

spent in court by employees covered by this Agreement will be compensated at the rate of time and one half of regular pay, if the employee's appearance in court is required by their official duties, and if the appearance falls outside of their assigned duty period for any given week.

- d. **Witnesses:** Officers who are called as witnesses at any disciplinary hearing when such appearances occur outside their regularly assigned duty hours, the time so spent shall be included as part of their hours of employment for that pay period and shall be deemed overtime and payable at time and one half of regular pay for the time spent at such a hearing.
- e. **Working Out of Title:** Officers covered by this Agreement who are temporarily assigned to higher ranking titles or positions shall receive the 1st Grade Level pay of that higher title or position effective the first day of service, or any portion thereof, in the higher capacity and will be calculated into the overtime rate. Compensation shall be included in the next regular pay period subsequent to the performance of such duty, provided that such performance has been duly reported to the City Finance Office by the Fire Department, unless otherwise warranted by circumstances beyond the control of the Administration. Assignment to a higher title can be made only through the approval of the appointing authority and the Business Administrator. Officers who are working out of title under the provisions of this section, and who are required to work overtime in the capacity of the temporary higher title shall receive time and one half pay at the rate of the 1st Grade Level of the higher title. No Working out of title assignment will be approved if there is an overtime in the title that is moving up to fill a higher-grade rank.
- f. **Holdover:** Officers that have been properly relieved from a Company operation and are ordered to remain on the scene, by the Incident Commander; shall be paid in

fifteen-minute segments at a rate of one- and one-half times their hourly rate which they receive for their regularly assigned duty with a minimum of two (2) hours overtime for each occurrence of Holdover.

Section 3.03 – Overtime/Volunteer

Prior to employees being mandated to work overtime, the CITY will offer overtime to qualified employees who have volunteered to work overtime, except in emergencies .

ARTICLE IV

Wages

Section 4.01 – Base Salaries

- a. Salary for the purpose of this agreement shall be the highest base salary that an Officer is duly and properly authorized to receive at the beginning of each contract year.
- b. Contracts will be based on the calendar year.
- c. Effective 1/1/94 there shall be established steps in all ranges represented by this union, for all employees promoted into each title on or after 1/1/94, as shown in Section 4.01B. Any member, upon reaching their 24th anniversary of date of hire, or 24th anniversary of date within pension system shall be placed at the maximum salary for their title.
- d. Effective 1/1/21 the following shall be the salary increase for all steps:

1/1/21 – 2%

1/1/22 – 2%

1/1/23 – 2%

1/1/24 – 2%

1/1/25 – 2%

1/1/26 – 2%

A total of 12% through duration of contract. The first year and four months (16 months) of retro payments shall be made within thirty (30) days after the adoption of the 2023 fiscal budget. The remaining Retro payment shall be made within thirty (30) days after Trenton City Council's adoption of the 2024 fiscal budget. Within thirty (30) day following DCA's approval and the City's Council's passage of this Contract, the payroll increases shall be implemented into the payroll system.

Section 4.02 – Rank Differentials

- a. The Rank Differential between Captain and Battalion Chief shall be fifteen percent (15%).

Section 4.03 – Shift Differential Pay

Effective 7/1/2000, the CITY agrees to pay all members covered under this agreement one percent (1%) of their base salary. This money will be paid bi-weekly in salary, pensioned, and will be calculated into the overtime rate.

Effective 12/17/15, for employees hired on or after September 1, 2015, and subsequently promoted into the TFOA shall have their shift differential at 1.0% on their base salary each year. This money will be paid bi-weekly in salary, pensioned, and will be calculated into the overtime rate.

Section 4.04 – Haz-Mat Pay

Effective 7/1/2000, the City agrees to pay all Battalion Chiefs and Captains working at Engine 1, Ladder 1, and Rescue 1 (12 Captains) one percent (1%) of their base salary for Haz-Mat duties or knowledge pertaining to Haz-Mat operations. This money will be paid bi-weekly in salary, pensioned, and will be calculated into the overtime rate. Effective 12/17/15, all Battalion Chiefs and Captains qualified as a Trenton Fire Department Haz-Mat Technician and not assigned to the task force will receive a per diem rate for temporary assignment to Task Force.

Section 4.05 – EMS Stipend

Effective 12/17/15, each member of the TFOA shall receive a \$350 per year EMS stipend beginning on January 1, 2016. This money will be paid bi-weekly in salary, pensioned, and will be calculated into the overtime rate.

Section 4.06 - Payroll

The Union and City agree that the twenty-six (26) pay period system shall change to a twenty-four (24) pay period system to be implemented once the City has the consent of all collective bargaining units.

ARTICLE V

Longevity Pay & Degree Pay

Section 5.01 – Longevity Increments

Each employee covered by this Agreement shall in addition to their regular wages and benefits be paid a longevity increment based upon years of service with the Fire Department in accordance with the following schedules:

Effective 7/1/1998

a. After 5 years of service	2% of base
b. After 10 years of service	4% of base
c. After 15 years of service	8% of base
d. After 20 years of service	10% of base
e. After 24 years of service	13% of base
f. After 29 years of service	14% of base

Effective 12/17/15, employees hired on or after September 1, 2015, and subsequently promoted into the TFOA will not receive longevity, but they will receive an annual salary adjustment of \$3,500 on their 20th anniversary of the date of hire and an additional \$3,500 on the 24th anniversary of the date of hire for a total of \$7,000 per year.

Section 5.02 – Qualification and Method of Payment

Each employee shall qualify for the longevity increment on the date of the anniversary of their employment, and such increment shall be due and payable in a lump sum basis in December of that year. As of January 1, of the year following their anniversary year, the longevity increment shall increase the employee's annual rate of pay. This money will be paid bi-weekly in salary, pensioned, and will be calculated into the overtime rate. Effective 1/1/96 the longevity increment occurring in the 24th year will be due and payable within the employee's annual rate of pay effective January 1st in the year the employee will complete their 24th year anniversary. Time spent on suspension without pay status, or on

leave without pay, except with regard to leave for military service with the armed forces of the United States of America and scholarship leave, shall not be included in determining years of service. If after final adjudication, an employee is found not guilty of charges specified against them, all time during such suspension shall be included in determining years of service. Members who purchase both portions of Military service (city and employee) will be credited with time toward longevity years equivalent to the amount of time purchased.

Section 5.03 – College Degrees

Effective 7/1/2000, bi-weekly payments in salary, that are pensionable, will be made to all members of TFOA who have attained College Degrees. Payment will be based on the level of education attained as shown below:

Associate degree	\$200.00
Bachelor's Degree	\$400.00
Masters' Degree	\$600.00

Payment will be paid bi-weekly in salary, pensioned, and will be calculated into the overtime rate for each member that has submitted to Fire Administration a copy of their Degree or Transcript Record. Degrees do not have to be Fire Oriented and after initial submission of Degree or Transcript to Fire Administration future submissions will only be required when a change occurs that would increase payment to member.

ARTICLE VI

Clothing Allowance

Section 6.01 – Clothing Allowance

Effective 1/1/21 the City agrees to provide the following uniforms every two years:

2 – Class B uniforms

2 – Class C uniforms

1 – Winter Jacket upon promotion

Effective 1/1/21 the City agrees to pay an annual stipend of \$300.00 to be paid bi-weekly for the care and maintenance of uniforms.

Section 6.02 – Bullet Proof Vests

Effective 12/17/15, the City will provide bulletproof vests for all Officers who act as EMS first responders. Vests shall be used and maintained in accordance with rules and regulations to be established by the Trenton Fire Department.

ARTICLE VII

Health and Welfare

Section 7.01 – Health Insurance

The City agrees to continue the current coverage in place as of 10/31/17, with active employees contributing according to the provisions of N.J.S.A. 52:14-17.28C. The CITY agrees to continue coverage equal to or better than that provided by the New Jersey State Health Benefits Plan.

Section 7.02 – Prescription / Optical / Dental

An Optical Plan comparable to that of the New Jersey State Health Benefits Program and effective 7/1/00 the reimbursement for an employee's spouse and dependents cost for prescription lenses in the amount \$150.00 for bifocals and \$150.00 for single vision shall be paid by the CITY. The CITY agrees to continue the Contributory Dental Care Program.

Section 7.03 – Retired Health Care

The CITY shall continue to provide health care and prescription drug coverage with costs covered by the CITY for all retiring members, spouse and dependents. Such health care will remain equal to or better than the health care provided to the member, spouse and dependents at the time of their retirement.

Section 7.04 – Retired Prescription Care

The CITY agrees to continue the Prescription Drug Plan for all retiring employees, spouse and dependents. Should there be any increase in the amount a retiree, spouse or dependents must contribute above what the retiree was contributing at retirement, then the CITY agrees to, on an annual basis, reimburse the retiree, spouse and dependents for the additional amount incurred based upon documentation submitted.

ARTICLE VIII

Sick Leave

Section 8.01 – One Year Limit / Sick Leave Bank

Effective 1/1/2001, for the first 15 years of service each employee is entitled to remain on sick leave for a period of one (1) year for each separate illness or injury which is not service connected. In no case will the period of sick leave extend beyond one (1) year, even if more than one illness or injury occurring consecutively is involved. This policy does not refer to Line-Of-Duty injuries and time off for such injury is not charged as sick time.

On the 1st day of the 16th year of service each employee is entitled to remain on sick leave, with pay, until Employees Sick Leave Bank (Accumulated Sick Leave – MINUS - Sick Days Taken) has been reduced to zero (0). The one-year limit does not apply from start of the 16th year to retirement. This policy does not refer to Line-Of-Duty injuries and time off for such injury is not charged as sick time. If a member returns to work on Light Duty the time spent on Light Duty will not reduce the members Sick Leave Bank.

When the employees Sick Leave Bank is reduced to zero (0) the City is not obligated to pay the employee's daily rate of pay for all sick days taken beyond the depletion of their Sick Leave Bank. If the employee can return to work within one (1) year after all Sick Leave Bank days have been used, they shall be placed on disability.

When the employee receives their 15 days sick leave at the start of the new calendar year, they will not be reduced for any sick days taken beyond the employees Sick Leave Bank from the previous year.

The CITY will continue to pay for Medical benefits for each employee that is not receiving wage compensation for sick days taken beyond the members Sick Leave Bank.

Section 8.02 – Examination by Police & Fire Surgeon

The Association clearly recognizes, however, the right of the CITY to require that employees on sick leave be examined as often as the CITY sees fit, by the Police and Fire Surgeon, or any other physician designated by the CITY or said Surgeon; and that at any time, if the employee is found by a physician to be capable of returning to work, the employee will be ordered back to active duty.

Section 8.03 – Sickness During Vacation

If a member becomes ill during his scheduled vacation period, any absence from duty during said vacation period may be charged to sick time.

Section 8.04 – Line of Duty Injury Which Prevents Vacation

If unable to use allotted vacation time in any calendar year due to line of duty injury, said vacation time may be carried to the following year at the discretion of the Fire Director.

Section 8.05 – Light Duty

No employee while assigned at the discretion of the CITY to other duties, or light duty, shall be charged with sick leave while performing such duties.

Section 8.06 – Abuse of Sick Leave

The Association agrees to be concerned about the use and possible abuse of sick time. It will work with the Fire Director or designee to enforce the sick leave provisions in an even-handed and equitable manner. The Association is also in agreement to make every effort to discourage the abuse of sick time by its own members. Effective 12/17/15, sick leave verification shall be required after four

(4) days use of sick leave. All sick time must be taken in 24-hour blocks (or two sick days).

Section 8.07 – Sick Leave Buy Back

A permanent employee who enters retirement pursuant to the provisions of a State administered or approved retirement system and has to their credit any earned and unused accumulated sick leave, shall be entitled to receive supplemental compensation, for such earned and unused accumulated sick leave.

The supplemental compensation to be paid shall be computed at the rate of one-half of the eligible employee's daily rate of pay for each day of earned and unused accumulated sick leave, based upon the average annual compensation received during the last year of their employment prior to the effective date of their retirement, provided, however, that no such supplemental compensation payment shall exceed \$20,000.

This supplemental compensation shall be paid in a lump sum after the effective date of retirement or, as may be elected by the employee deferred for one (1) or more years or, in the event of death, shall be paid to the estate of the employee.

Because of the past performance of the person retiring taking time off in their final year, a clause was built in to prevent this and is as follows:

In the 12 months prior to retirement the following will prevail:

1st 15 sick days – no penalty

16 to 45 days - 50% of daily rate will be deducted from buy back

46 to 60 days - 75% of daily rate will be deducted from buy back

61 + days - 100% of daily rate will be deducted from buy back

This clause is not intended to reduce or eliminate the Sick Buy Back for an employee, with a good sick record, who has an accident or debilitating disorder in their final 12 months of employment.

Members who fall into this category shall have their case reviewed by the CITY and Union. The CITY incurs no obligation other than being obligated to review a case.

For the purpose of calculating accrued sick time, employees will earn 1-day sick for each month of employment during the first calendar year of service and 15 days per year thereafter. Usage will be based on Fire Department records.

Section 8.08 – Temporary Disability

The CITY agrees to participate in the New Jersey Temporary Disability Plan, or another plan with substantially equivalent benefits.

ARTICLE IX

Vacations

Section 9.01 – Days Earned / Vacation Hours

Vacation with pay shall be granted to all officers promoted to titles covered by this Agreement as follows:

CAPTAIN:

Year 1	144 hours
Year 2-3	204 hours
Year 4-5	228 hours
Year 6-8	252 hours
Year 9-10	276 hours
Year 11-12	312 hours
Year 13-15	324 hours
After 15 years	336 hours

BATTALION CHIEF:

Year 13-15	336 hours
After 15 years	360 hours

Section 9.02 – Use of Vacation Hours

Effective 1/1/1993, vacation day can be used on a one day at a time basis. Time must be used in 12-hour increments. The use of vacation time shall conform to Fire Department policy in regard to two members being off at the same time within the same company and platoon.

Section 9.03 – Demand Days

Demand Days shall be classified as:

a. 'A Days' Sixty (60) of the above allotted vacation hours may be taken by every Officer at their discretion provided forty-eight (48) hours advance notice is given to their immediate supervisor, and no more than five (5) bargaining unit overtime replacements are generated by such vacation selections.

Section 9.04 – Terminal Leave

Upon retirement in accordance with the provisions of the New Jersey Police and Fire Retirement System, Fire Officers shall receive either the number of vacation hours or equivalent compensation which they would have received or earned had they worked the entire calendar year, minus any vacation days taken, during the year of retirement, the resulting number of vacation days, however, being reduced pro rata by the percentage of the employee's previous year of employment spent on sick (and injury) time, not including the first 180 hours of sick time actually taken in said year.

For the purpose of this section an Officer who retires effective January 1st of any given year shall be entitled to the full vacation for that calendar year.

Members are able to sell back two full years at the end of their career.

Vacation buy back will be calculated at 12 hours per day earned.

ARTICLE X

Holidays

Section 10.01 – Designation

The TFOA agrees to recognize as paid holidays, such holidays as shall be designated for all employees of the City of Trenton as set forth in the appropriate ordinance or resolution adopted by the CITY for such purpose.

Section 10.02 – Non-Duty Day

It is recognized by both parties that by reason of Department business certain employees of the Fire Department are not able to be excused from working on such holidays as are normally enjoyed by other City employees. Therefore, in lieu of receiving days off on such holidays, Officers who perform firefighting duties as described in Section 3.01 of this Agreement will receive a full day's pay in addition to their regular salary for each such holiday as determined in Section 10.01. For this purpose, in the event that any of the aforesaid allowed paid holidays fall on a non-duty day, said holiday shall be deemed to have fallen on a regular working day.

Section 10.03 – Method of Payment

Compensation for holidays for ALL members under this agreement shall be calculated on the basis of twelve (12) hours per holiday. Payment shall be included in members Bi-weekly salary and pensionable. Holiday payments, in salary, shall not be included in member's overtime rate.

ARTICLE XI

Miscellaneous

Section 11.01 – Exchanging Days

Officers of the Fire Department shall have the option of exchanging days of duty with other officers of equal rank upon proper notification and approval of their respective supervisors.

Section 11.02 – School / Training

The TFOA agrees that members detailed to a Fire Department sanctioned training class shall be considered to be 'on duty' from the time they leave for the training session, whether leaving from their home or from a Fire Department location. Reasonable travel time shall be allowed based on the distance traveled. Whenever possible, a Fire Department vehicle shall be supplied for such training sessions. Whenever a vehicle is not available, mileage will be paid to the member at a rate established by City of Trenton Policies. This section does not cover optional training allowed by the department.

Section 11.03 – Snow Days

The TFOA agrees that members 'must report to work' to earn a 'Special Day' (a 24-hour day that cannot be used in such a way that creates overtime) related to 'Snow Emergencies' that caused the City of Trenton to shut their offices.

Section 11.04 – Layoff and Recall

Effective 12/17/2015, any member that is issued a layoff/demotion notice, (other than for disciplinary reasons) and laid off/demoted and then rehired/promoted with the City if they are still in salary steps, when they are returned to their previous position they will pick up where they left off and the next step is achieved on their previous anniversary date. Also, anyone who was hired prior to this agreement will remain with the three steps in the event of a layoff.

Section 11.05 – Assignments - Diver

Effective 12/17/2015, Battalion Chiefs and Captains qualified as a Trenton Fire Department Diver Supervisors and assigned as supervisors to the Dive Task Force will receive a stipend of 1 % of their base pay. This money will be paid bi-weekly in salary, pensioned, and will be calculated into the overtime rate. Qualified Battalion Chiefs and Captains not permanently assigned to the Dive Task Force will receive a daily rate for temporary assignment to Task Force.

Section 11.06 – Training Division

Training Division :

- A) Head of Division shall be a Battalion Chief Officer
- B) Training Captains will be assigned to 24-hour shift
- C) Training Captains will receive a 7% Stipend added to base pay
- D) Training Captains will receive the 1% Stipend if qualified for Haz-Mat Ops
- E) Training Captains will receive the 1% Stipend if qualified for Dive Ops
- F) Training Captains can be removed for 'Just Cause'

Section 11.07 – Jury Duty

If an employee serves on jury duty and is completely released from such duty by 1 pm, the employee must report to work at 19:00 hours.

ARTICLE XII

Seniority

Section 12.01 – Defined

Seniority shall consist of the uninterrupted length of accumulated service of each employee.

An employee's length of service shall not be reduced by the time lost due to sick or injury leave or authorized leave of absence.

ARTICLE XIII
Promotional Vacancies

Section 13.01 – Defined

The CITY agrees to make every possible good faith effort to fill promotional vacancies occurring in the job titles covered by this Agreement within a reasonable time, not to exceed three months. Such vacancies will be filled from existing Civil Service Commission certification list.

ARTICLE XIV

Grievance Procedure

Section 14.01 – Grievance Committee

At the discretion of the TFOA President there shall be up to two members of the TFOA Grievance Committee granted leave from duty with full pay for all meetings between the CITY and the TFOA for the purpose of processing grievances; when such meetings take place at a time during which such members are scheduled to be on duty, and upon reasonable notice to the Fire Director.

Section 14.02 – Method

In the event that any dispute, difference or grievance shall arise between the Employer and any Employee; or between the Employer and the Association, regarding the interpretation and application of this Agreement; or regarding condition of employment, (including, but not limited to the disciplining or discharge of Employees), the parties involved in such dispute, difference or grievance, shall first make a bona fide attempt at a settlement thereof by the following procedure to wit:

- a. Complaints may be initiated by an individual employee to their supervisor. If the complaint is not adjusted satisfactorily at this stage and the employee wishes to enter a grievance, it shall be presented by the authorized Association Representative.
- b. When the Association wishes to present a grievance for itself or for an employee, or groups of employees for settlement, such grievance shall be presented as follows:

STEP 1:

- (A) If President of the Association or their duly authorized and designated representative shall present and discuss the grievance or grievances orally, with the Deputy Chief of Personnel, or their duly designated representative. The Deputy Chief of Personnel shall answer the grievance orally within five (5) days.

STEP 2:

- (A) If the grievance is not resolved in Step 1 (A); The President of the Association or their duly authorized and designated representative shall present and discuss the grievance or grievances orally, with the Fire Director, or their duly designated representative. The Fire Director shall answer the grievance orally within five (5) days.

STEP 3:

- (A) If the grievance is not resolved at Step 2 (A) or if no answer has been received by the Association within the time set forth in Step 2 (A), the Association shall present the grievance within ten days in writing to the Fire Director. The Presentation shall set forth the position of the Association and at the request of either party, or the Director, discussions may ensue. The Fire Director shall answer the grievance in writing within ten (10) days, after receipt of the grievance setting forth the position of the Employer.

STEP 4:

- (A) If the grievance is not resolved at Step 3 (A), or if no answer has been received by the Association within the time set forth in Step 3 (A), the grievance may be presented in writing to the Business Administrator. The final decision of the Business Administrator shall be given to the Association, in writing, within fourteen (14) days after the receipt of the grievance by the Business Administrator. Discussion may ensue in the interim, at the request of either party, or the Business Administrator.

STEP 5:

- (A) If the grievance has not been settled by the parties at Step 4 (A) of the Grievance Procedure, or if no answer in writing by the Business Administrator has been received by the Association, within the time provided in Step 4 (A), The Association may demand arbitration of the grievance in accordance with arbitration procedure, as here in after set forth.

Section 14.03 – Rights of Appeal

Nothing herein is intended to deny an employee the right of appeal, as expressly granted in the Revised Department of Personnel Rules for the State of New Jersey.

Section 14.04 – In Person Processing of Grievance

Nothing herein shall prevent any employee from processing their own grievance, provided

the Grievance Committee may be present.

Section 14.05 – Arbitration

- a. Any grievance or other matter in dispute involving the interpretation or application of the provisions of this Agreement, not settled by the Grievance Procedure as herein provided, may be referred to an arbitrator as hereinafter provided. Effective 7/1/2000 the TFOA agrees that members with disciplinary suspension of forty hours (40) or less shall not be appealed to an Arbitrator.
- b. Either party may institute arbitration proceedings when the Grievance Procedure has been exhausted, by written demand upon the other party; specifying the nature of the unsettled grievance, or other matter in dispute. Within fifteen (15) days following presentation of such demand, the party demanding arbitration shall request the New Jersey Public Employment Relations Commission to appoint an arbitrator, to hear the arbitration in the manner set forth in Rule 19:12-14, Rules and Regulations and Statement of Procedure of the New Jersey Public Employment Relations Commission.
- c. The decision of the Arbitrator shall be in writing and shall include the reasons for each finding and conclusion.
- d. The decision of the Arbitrator shall be final and binding on the Association and the Employer.
- e. Where an employee has exercised their right of appeal as expressly granted in the Revised Department of Personnel Rules or Statutes of New Jersey, there shall be no right to arbitration under the provisions of this article.
- f. In the event of a change in the law governing the New Jersey Public Employment Relations Commission, or its rules and regulations, which would in any way affect the method of

selection of an Arbitrator, then, in the alternative; the party demanding the arbitration shall request of the American Arbitration Association, submission of a list of nine (9) Arbitrators, from which the parties may make a selection of ONE (1) Arbitrator if the parties fail to agree on the selection of the Arbitrator from the list, each party shall alternately strike one name, until but one name remains and that party shall be the Arbitrator, of the issue or issues to be arbitrated. The cost of the Arbitrator's services, if any, shall be shared by both parties and each of the parties bear its own cost.

- g. Nothing herein contained shall subject the matters of wages, hours, other fiscal benefits or union recognition to arbitration, it being the specific intent that within Article XIV relating to grievance procedures shall apply only to the settlement of disputes, differences or grievances between the Employer and Employee or between the Employer and the Association, as set forth in Section 1 (A) of the Grievance Procedure herein.

Section 14.06 – Defined

Fiscal matters as wages, hours, and benefits are not subject to interest arbitration. Only the President or the Grievance Committee can authorize a grievance moving to binding arbitration.

ARTICLE XV

Strikes and Other Job Action

Section 15.01 – Defined

The employees recognize and acknowledge the existing state of the law in the State of New Jersey relating to the rights of public employees to strike or to take any other concerted action designed to illegally obstruct or disable the proper functions of the CITY, and employees agree to be bound by all such laws, as they now exist, or as they may be modified or amended, from time to time.

ARTICLE XVI
Management of City's Affairs

Section 16.01 – Defined

- a. The employees recognize that areas of responsibility must be reserved to the City to serve the public effectively. Therefore, the right to manage the affairs of the CITY and to direct the working forces and operations of the CITY, subject to the limitations of this Agreement, is vested and retained by the CITY, exclusively.
- b. The management and the conduct of the business of the CITY and the direction of its working force are the rights of the Employer. The Employer shall have the right, subject to the terms herein contained, to hire employees, to classify, assign, transfer and promote them, to discipline or discharge them for cause, and in general to maintain discipline, order and efficiency consistent with the rules and regulations of the Department of Personnel Commission.
- c. The Employer reserves the right to publish reasonable rules and regulations from time to time as it may be necessary and proper for the conduct of its business, provided that the same are not inconsistent with the terms of the Agreement and provided further that such rules and regulations are subject to the grievance and arbitration provision of this Agreement.

ARTICLE XVII

Administrative Code, Administrative Manual, and Rules and Regulations

Section 17.01 – Defined

The Employee hereby recognizes and agrees that the Administrative Code, Administrative Manual of the Employer, and the Rules and Regulations of the Department of Fire, of the Department of Public Safety, of the Employer, continue in full force and effect with respect to the Employees as they presently exist, including any amendments thereto, and are operative as to the Employees, unless specific provisions are set forth herein in contravention of the matters set forth therein in which event the provisions of this Agreement shall prevail.

ARTICLE XVIII

Applicable Laws

Section 18.01 ~ Defined

The provisions of this Agreement shall be subject to and shall not annul or modify existing applicable provisions of Federal, State and Local Laws and ordinances or any properly enacted amendments, additions, or deletion thereto, except as specifically permitted thereby.

ARTICLE XIX

Staffing

Section 19.01 – Defined

In order to protect the health and safety of the employees of the Fire Department, and to provide an improved level of fire service to the City, the CITY agrees to provide during each day of duty a minimum of two (2) Battalion Chiefs for City-wide response, and one (1) Captain riding on each apparatus, at all times and to institute an overtime program designed to maintain this minimum staffing for firefighting.

ARTICLE XX

Funeral Leave

Section 20.01 – Immediate Family

In the event of death of a spouse, parent, stepparent, child, brother, sister, grandparent, grandchild, mother-in-law, father-in-law, son-in-law, daughter-in-law, common law spouse (defined as living together for two or more years) or any relative of the employee's household: Members not assigned as Special Duty Staff shall be granted time off equal to two 24-hour shifts. Members assigned as Special Duty Staff shall be granted forty (40) hours of time off. Additional time, if needed, shall be granted as vacation time. Step relatives will be considered members of the immediate family only under the following circumstances: stepbrothers and sisters when the employee was raised in the household, and stepchildren when they were raised in the employee's household.

Section 20.02 – Extended Family

In the death of an uncle, great uncle, aunt, great aunt, nephew, niece, brother-in-law, sister-in-law, cousin of the first degree, grandparent of spouse, niece or nephew of spouse, or aunt or uncle of spouse, members assigned 10-hour work shifts shall be granted twenty (20) hours of time off. All other members shall be granted 24 hours of time off. In the event that any of the above relatives are members of the employee's household, funeral leave shall be granted in accordance with Section 21.01.

Section 20.03 – Funeral Leave While on Vacation

If an employee is on vacation and attends the funeral or viewing of a covered relative, then the appropriate covered time, for duty days, will be charged to funeral leave and not vacation leave.

Section 20.04 – Funeral Leave Expense – Line of Duty Death

The CITY agrees to reimburse a member's family or estate the amount of funeral expenses, not to exceed \$10,000 for any Fire Officer who dies in the line of duty.

ARTICLE XXI

Contract Duration

Section 21.01 – Duration

This Agreement is for the term January 1, 2021 through December 31, 2026. It shall, however, remain in full force and effect and from year to year thereafter, including any wage payments or step increases as provided for in Section 4.01 above.

IN WITNESS WHEREOF, the City of Trenton has caused its corporate seal to be affixed hereto, and attested to by its City Clerk, and has caused these presents to be signed by the Mayor of the City of Trenton as an authorized document, upon the resolution of the City Council dated the _____, numbered _____ and the Trenton Fire Officers Association has caused these presents to be signed by the properly elected Officers and Directors of the Association, together with the Negotiating Committee of the Association, on behalf of the membership thereof on the month and year first written here in above.

CITY OF TRENTON


Mayor


Business Administrator

8/3/23
date

TRENTON FIRE OFFICERS ASSOCIATION


Member Negotiating Committee

Kevin Beyrouy
Member Negotiating Committee

8/3/23
date

NEW JERSEY DEPARTMENT OF COMMUNITY AFFAIRS/DLGS

By: 

Date: 8/22/2023

RESOLUTION

No. **23-382**Date of Adoption **AUG 03 2023**

Approved as to Form and Legality

CITY ATTORNEY

Councilman/woman

Factual content certified by

Adam E. Cruz, Business Administrator

presents the following Resolution:

RESOLUTION AUTHORIZING THE EXECUTION OF THE COLLECTIVE BARGAINING AGREEMENT BETWEEN THE CITY OF TRENTON AND THE TRENTON FIRE OFFICERS ASSOCIATION (TFOA), AND THE FIREMEN'S MUTUAL BENEVOLENT ASSOCIATION (FMBA), LOCAL 206

WHEREAS, the City of Trenton and Trenton Officers Association (TFOA), and the Firemen's Mutual Benevolent Association (FMBA), Local 206 are parties to a Collective Bargaining Agreement which expired on December 31, 2020; and

WHEREAS, the City of Trenton and Trenton Fire Officers Association, and the Firemen's Mutual Benevolent Association, Local 206, have negotiated a successor Collective Bargaining Agreement for a term of January 1, 2021 through December 31, 2026; and

WHEREAS, the terms of the Collective Bargaining Agreement are set forth in the attached Memorandum of Agreements.

NOW, THEREFORE, IT IS RESOLVED, by the City Council of the City of Trenton that the Mayor is hereby authorized to execute a Collective Bargaining Agreement with the Trenton Fire Officers Association, and the Firemen's Mutual Benevolent Association, Local 206 consistent with the terms of the Memorandum of Agreement attached hereto.

	Aye	Nay	Abstain	Absent		Aye	Nay	Abstain	Absent		Aye	Nay	Abstain	Absent
EDWARDS	✓				GONZALEZ	✓				FRISBY	✓			
FELICIANO	✓				HARRISON	✓								
FIGUEROA	✓				WILLIAMS	✓								
KETTENBURG	✓													

This Resolution was adopted at a Meeting of the City Council of the City of Trenton on

AUG 03 2023

President of Council

City Clerk

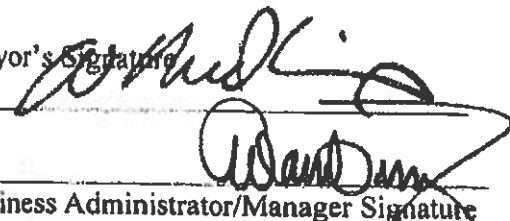
**STATE OF NEW JERSEY
DEPARTMENT OF COMMUNITY AFFAIRS
DIVISION OF LOCAL GOVERNMENT SERVICES
CONTRACT REQUEST FORM**

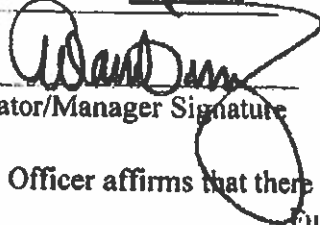
This form must be filled out in its entirety and is intended to provide the Division with appropriate information to determine whether to approve a new or extended service. Please provide any additional information you believe will help the Division make an informed decision.

Municipality	City of Trenton
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Name of Vendor	TRENTON FIRE OFFICERS ASSOCIATION (TFOA) FIREMEN'S MUTUAL BENEVOLENT ASSOCIATION LOCAL 206
Purpose or Need for service:	Contract Negotiation Settlement – January 1, 2021 through December 31, 2026
Contract Award Amount	Year 2021 – 2%; Year 2022 – 2%; Year 2023 – 2%; Year 2024 – 2%; Year 2025 – 2% and Year 2026 – 2%
Term of Contract	2021 through 2026
Temporary or Seasonal	
Grant Funded (attach appropriate documentation allowing for service through grant funds)	
Please explain the procurement process (i.e. bids, RFQ, competitive contracting, etc)	
Were other proposals received? If so, please attach the names	

Please attach any evaluation memoranda or evaluation forms used to evaluate the vendors. If the lowest bidder was not selected, please have the appropriate personnel sign the certification on page 2.

Mayor's Signature 

Business Administrator/Manager Signature 

Date 5.18.23

Date 5/16/23

The Chief Financial Officer affirms that there is adequate funding available for this personnel action. _____ Funding Source for this action

Chief Financial Officer Signature

I certify that the vendor selected is in compliance with the adopted Pay to Play Ordinance and that the vendor was notified of any restrictions with respect to campaign contributions.

Certifying Officer

Date _____

For LGS use only:

() Approved () Denied

Date

Director or Designee, Division of Local Government Services

Number Assigned